SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO.	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	127EAX26Q0112	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	09/15/2026	1 of 18

IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.
	1174674	

7. ISSUED BY	CODE	8. ADDRESS OFFER TO
USDA-FS CSA SOUTHWEST 7 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498	7EAX	toinette.aranda@usda.gov

9. FOR INFORMATION CALL	a. NAME	b. TELEPHONE NO. *(Include area code) (NO COLLECT CALLS)*
	TOINETTE ARANDA	719-733-3249

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date)*

1A Bridge Conference Roof Repair
This project consists of replacing metal ribbed roofing panels on Building 1A at USDA, ARS, PA, Northern Great Plains Agricultural Research Laboratory (NGPRL), Mandan, North Dakota

Site Visit
For site visit information see Solicitation Information section.

Quote Due Date
Quote shall be emailed to toinette.aranda@usda.gov no later than the date and time specified in block 13.

Questions/Request for Information (RFIs)
See 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services

11. The Contractor shall begin performance within 10 calendar days and complete it within 120 calendar days after receiving
☐ award, ☒ notice to proceed. The performance period is ☐ mandatory ☒ negotiable. (See _____.)

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	☐ YES ☒ NO	12b. CALENDAR DAYS
		0

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 1500 *(hour)* local time 09/23/2026 *(date)*. If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected .

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than item 14.)*
CODE FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)*

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20b. SIGNATURE	20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY CODE 7EAX	27. PAYMENT WILL BE MADE BY
USDA-FS CSA SOUTHWEST 7 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations,certifications, and specifications incorporated by reference in or attached to this contract.*	☐ 29. AWARD *(Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.*
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*	31a. NAME OF CONTRACTING OFFICER *(Type or print)*

30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Delivery: 120 Days After Notice to Proceed Delivery Location Code: ARS-126613 PA NATURAL RESOURCE MANAGEMENT RESE 1701 10TH AVENUE SW PO BOX 459 MANDAN ND 58554 US				
0001	1A- Bridge Conference Roof Repair				

1A Bridge Conference Roof Repair
127EAX26Q0112

Description

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation; offers are being requested, and a separate written solicitation will not be issued.

Solicitation number 127EAX26Q0112 is issued as a Request for Quotation (RFQ) for 1A Bridge Conference Roof Repair. Replace metal ribbed roofing panels on Building 1A at USDA, ARS, PA, Northern Great Plains Agricultural Research Laboratory (NGPRL), Mandan, ND.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The applicable North American Industry Classification Standard Code is 238160 The small business size standard is $19M This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

See Attachment Schedule of Items - Fillable (to be submitted with proposal).

DO NOT FILL IN – submit "Fillable Schedule of Items"

PROJECT	1A Bridge Conference Roof Repair				
SOL #	127EAX26Q0112				
ITEM NO.	**ITEM DESCRIPTION**	**Unit**	**Qty**	**Unit Price**	**Amount**
0001	Replacement Metal Ribbed Roofing Panels on Building 1A per SOW.	Lot	1		
				TOTAL	

Technical Data

Technical data and supporting documentation associated with this solicitation are available through the following sources:

Solicitation Attachments

- Attachment 01 Performance Work Statement
- Attachment 02 Wage Decision ND20260015 05-18-2026
- Attachment 00 Fillable Schedule of items

Project Location

Project location is listed in Attachment 01 Statement of Work

Federal Acquisition Regulation (FAR) and United States Department of Aquiculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (JUL 2026)
This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes.* Changes will be handled in accordance with the following FAR clause(s):

☐ FAR 52.243-4, Changes (Nov 2025)
☒ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)
(o) FAR 52.246-21, Warranty of Construction is applicable to this contract.

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50 Combating Trafficking in Persons (Nov 2025)
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-13 Notice of Progress Payments (APR 1984)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 Protest After Award (Sep 2025)
52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91 Security Prohibitions and Exclusions (Nov 2025)
52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)
52.204-13 System for Award Management—Maintenance (Nov 2025)
52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)

52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
52.219-6 Notice of Total Small Business Aside (Nov 2025)
52.219-8 Utilization of Small Business Concerns (Nov 2025)
52.222-3 Convict Labor (June 2003)
52.222-35 Equal Opportunity for Veterans (Nov 2025)
52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
52.222-37 Employment Reports on Veterans (Nov 2025)
52.222-54 Employment Eligibility Verification (Nov 2025)
52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
52.223-23 Sustainable Products and Services
52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
52.222-6 Construction Wage Rate Requirements
52.222-7 Withholding of Funds
52.222-8 Payrolls and Basic Records
52.222-9 Apprentices and Trainees
52.222-10 Compliance with Copeland Act Requirements
52.222-11 Subcontracts (Labor Standards)
52.222-12 Contract Termination-Debarment
52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations.
52.222-14 Disputes Concerning Labor Standards
52.222-15 Certificate of Eligibility
52.222-5 Construction Wage Requirements, Secondary Site of Work
52.236-5 Material and Workmanship
52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
52.222-55 Minimum Wages for Construction Workers under Executive Order 14026 (Nov 2025)
52.222 90 Addressing DEI Discrimination by Federal Contractors (Apr 2026), as required by Executive Order 14398
52.223-2 Reporting of Biobased Products under Service and Construction Contracts (Nov 2025)
52.225-9 Buy American-Construction Materials (Nov 2025)
52.228-2 Additional Bond Security (Oct 1997)
52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
52.228-14 Irrevocable Letter of Credit (Nov 2014)
52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
52.236-2 Differing Site Conditions (Jul 2025)
52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
52.236-6 Superintendent by the Contractor (Jul 2025)
52.236-7 Permits and Responsibilities (Jul 2025)
52.236-8 Other Contracts (Jul 2025)
52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
52.336-10 Operations and Storage Areas (Jul 2025)
52.236-11 Use and Possession Prior to Completion (Jul 2025)
52.236-12 Cleaning Up (Jul 2025)
52.236-13 Accident Prevention (Jul 2025)

52.236-14 Availability and Use of Utility Services (Jul 2025)
52.236-15 Schedules for Construction Contracts (Jul 2025)
52.236-16 Quantity Surveys (Jul 2025)
52.236-17 Layout of Work (Jul 2025)
52.236-21 Specifications and Drawings for Construction (Jul 2025)
52.242-14 Suspension of Work (Apr 1984)

AGAR Clauses

452.204–70 Modification for Contract Closeout (Nov 2025)

(a) If unliquidated funds in the amount of $1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than $1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than $1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a ''Contractor Release of Claims'' and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment. (End of Clause)

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

(1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.

(2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not

limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.(End of Clause)

452.232-71 Progress Payments for Commercial Construction Contracts (Dec 2025)
(a) *Contractor entitlement to progress payments*. The Contractor may request progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished that meets the standards of quality established under the contract, as approved by the Contracting Officer.

(b) *Computation of amounts*. Progress payments will be authorized when the payment requested is properly due in accordance with this contract; the work will be performed in accordance with the contract; and there has been no impairment or diminution of the Government's security under this contract. The Contracting Officer may authorize consideration of:

(3) Materials delivered on site and preparatory work;
(4) Materials delivered to the Contractor at locations other than the site, if:
  i. Specifically authorized by the contract; and
  ii. The Contractor provides satisfactory evidence of title and intended use in the contract.

(c) *Contractor request for progress payments*. The Contractor's request for progress payments shall include the following:

(1) An itemization of the amounts requested, related to the various elements of work required by the contract;
(2) A listing of the amount included for work performed by each subcontractor;
(3) A listing of the total amount of each subcontract;
(4) A listing of the amounts previously paid to each subcontractor; and

(5) Additional supporting data in a form and detail required by the Contracting Officer.

(d) *Contractor Certification.* Each request for progress payment shall be accompanied by the following certification:

I hereby certify, to the best of my knowledge and belief, that—

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;
(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;
(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and
(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

_____(name)
_____(title)
_____(date)

(e) *Access for verification of payment entitlement.* To verify the Contractor's entitlement to progress payments under this contract, the Contractor shall provide the Government, upon request and during normal business hours, access to the following:

(1) Records and Documentation:
  (i) Certified progress payment requests and supporting documentation;
  (ii) Subcontractor and supplier invoices, payment records, and lien waivers;
  (iii) Updated schedule of values and progress schedules;
  (iv) Quality assurance and inspection reports;
  (v) Payroll records, if applicable under labor provisions.

(2) Facilities and Worksite Access:
  (i) Physical access to the construction site for inspection of work progress;
  (ii) Access to off-site storage locations for materials billed but not yet incorporated into the work; or
  (iii) Access to any fabrication facilities where contract-related work is being performed.

(3) Access to electronic invoicing or project management systems used to track progress and payments, if such systems are used in contract performance.

(f) *Dates for payment*. A progress payment under this clause is a contract progress payment under the Prompt Payment clause of this contract, and except as provided in paragraph (g) of this clause, approved requests shall be paid within 30 days of submittal of a proper request for payment.

(g) *Liquidation of progress payments*. Progress payments shall be liquidated by deducting from the payment of each item the total unliquidated amount of progress payments made for that separately

priced unit of that line item. The liquidation amounts for each line item shall be clearly delineated in each request for progress payment submitted by the Contractor.

(h) *Security for progress payments.* In the event the Contractor fails to provide adequate security as required in this contract, no progress payment shall be made under this contract. Upon receipt of adequate security, progress payments shall be made, including all previous payments to which the Contractor is entitled, in accordance with the terms of the contract. If at any time the Contracting Officer determines that the security provided by the Contractor is insufficient, the Contractor shall promptly provide such additional security as the Contracting Officer determines necessary. In the event the Contractor fails to provide such additional security, the Contracting Officer may collect or liquidate such security that has been provided, and suspend further payments to the Contractor; the Contractor shall repay to the Government the amount of unliquidated progress payments as the Contracting Officer at his sole discretion deems repayable.

(i) *Special terms regarding termination for cause*. If this contract is terminated for cause, the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments. The Government shall be liable for no payment except as provided by the Termination for Cause paragraph of the clause at Federal Acquisition Regulation 52.212-4, Contract Terms and Conditions—Commercial Products and Commercial Services.

(j) *Reservation of rights.*

(1) No payment, vesting of title under this clause, or other action taken by the Government under this clause shall-
   (i) Excuse the Contractor from performance of obligations under this contract; or
   (ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause-
   (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
   (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(k) *Refund of unearned amounts*. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and
(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-
   (i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or
   (ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(l) *Retainage*. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(m) *Title, liability, and reservation of rights*. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or
(2) Waiving the right of the Government to require the fulfillment of all the terms of the contract.
(3) The Government's rights and remedies under this clause-
  (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
  (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(n) *Reimbursement for bond premiums*. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (l) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(o) *Final payment*. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;
(2) Presentation of a properly executed voucher; and
(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of1940 (31 U.S.C.3727 and 41 U.S.C. 6305).

(p) *Limitation because of undefinitized work*. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.
(End of clause)

1A Bridge Conference Roof Repair
127EAX26Q0112

Solicitation Information

Award Type
It is anticipated that a Firm-Fixed-Price Contract will be awarded as a result of this synopsis/solicitation.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Period of Performance
120 Calendar Days from Notice to Proceed.

Site Visit
An organized site visit has Not been scheduled. If a vendor wishes to see the site, please contact Mike Eberle at 701-667-3075 or 701-527-1524

Quote Due Date
All quotes shall be emailed to toinette.aranda@usda.gov no later than 23 September 2026 at 2:00PM Mountain.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. The Government shall award a contract to the responsible offeror who proposes the lowest priced offer that is found to be technically acceptable, as set forth in the solicitation. In order to be considered acceptable, an offeror must conform to the material terms of the solicitation (e.g. contract clauses, specifications, etc.). The Government shall not award any contract that does not propose a fair and reasonable price.

The Government intends to select a single contractor; however, it reserves the right to award no contract at all, depending on availability of funds and other extenuating circumstances. Award shall be made on an all or none basis. Offerors proposing deviations or alternatives to the solicitation requirements shall be considered non-compliant and not considered for award.

1. Technical Approach
The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated:

- Detailed explanation of your capability to accomplish this work. The offeror must address how they will accomplish all requirements of the SOW
- Description of the work you plan to subcontract.
- Include any subcontractors and their experience and capabilities.
- Planned sequencing of all work including the major tasks and timelines
- The resources (personnel and equipment) planned for use on the project and their availability.

2. Past Performance

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.

- Neutral: Offeror does not have a past performance record.

- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

3. Price

The offeror shall provide pricing as requested in the Schedule of Items in "Attachment Schedule of Items – Fillable" of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Evaluation Method:

The Government will evaluate quotations based on the lowest price technically acceptable (LPTA) criteria. "Technically Acceptable" evaluations will be conducted. Only the lowest priced offer will be evaluated for Technical Acceptability. Should the lowest priced offer not receive an acceptable technical or past performance rating, the process will continue in order of lowest priced offer until the lowest price, technically acceptable offer with acceptable or neutral past performance is identified.

Timely and compliant offers will be placed in order from lowest to highest price. A technical evaluation is then performed on the lowest-priced offeror. If the offeror is technically acceptable, award is made; if the offeror is not technically acceptable, the next lowest-priced offeror is evaluated. This process is worked until the LPTA offeror is identified. Offers that are priced higher than the LPTA offer will not be evaluated. Past performance will be evaluated in accordance with this solicitation.
Technically Acceptable proposal is defined as:

Offeror Compliance

SAM Registration: All Contractors must be actively registered in the System for Award Management (SAM) at https://SAM.gov to be eligible for award under this solicitation. If not actively registered by time of proposal evaluations, you will be found non-responsive. Registration in SAM is a free service – you do not need to pay to register in this system. If your registration is not active, you will not be considered for award.

Offers will be reviewed for timeliness. If the offer is received after the closing date and does not meet the criteria for "late submissions" in the solicitation, the offer will not be evaluated. The offer will be reviewed for compliance with the solicitation (i.e. submitted all documents required). If the offer is not compliant with the solicitation it will not be evaluated and the offeror will be notified that they are found to be non-responsive and ineligible for award.

Past Performance

Past Performance will be rated on an "acceptable" or "unacceptable" basis. Past Performance will be determined by evaluating three individual components of Past Performance Reports. Any past performance that is found to be "negative", shall result in the entire Past Performance rating as "Unacceptable".

The apparent successful, prospective contractor must have acceptable past performance. System for Award Management (SAM.gov) exclusions list, Federal Awardee Performance and Integrity Information System, and Contractor Performance Assessment Reporting System (CPARS) shall be considered as part of the past performance evaluation process. Any past performance that is found to be "negative", shall result in the entire Past Performance rating as "Unacceptable". "Negative" is defined as any CPARS past performance evaluation rated less than "Satisfactory" for any rating category, any Terminations for Default/Cause, or any negative performance references will be rated as 'Unacceptable'. Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable."

The Government reserves the right to use past performance information obtained from sources other than those identified by the offeror, including but not limited to past performance information located in the Contractor Performance Assessment Reporting System (CPARS).

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for Acceptance of Offers
The Offeror agrees to hold the prices in its offer firm for **60 calendar days** from the date specified for receipt of offers. **See SF1442 section 13**.

Questions/Request for Information (RFI's)
All questions or RFI's shall be submitted via email to both toinette.aranda@usda.gov and Alexander.Gaffke@usda.gov

Required Quote Submission Documents

Contact the Contracting Officer by e-mail if you do not understand any part of these instructions.

General
Proposals shall be submitted in four parts: Transmittal Summary Letter, SF1442, Schedule of Items and Technical Proposal to include past performance. Each part shall be separate and complete in itself so that evaluation of one may be accomplished independently of the other. The price proposal shall be submitted with the solicitation schedule of items document.

Offerors are cautioned that sufficient and detailed information must be presented in their proposals to enable the Government to evaluate their proposals fully in accordance with the evaluation and award criteria contained herein. The Government is not obligated to ask for additional information and in the absence of appropriate information, the proposal will be rated deficient.

Transmittal Summary Letter
Letter shall include Company Name, Address, and SAM Unique Entity ID (UEI). A list of the submission package contents. Point(s) of contact name, phone number and email address.

Completed, Signed Offer SF 1442
Complete blocks 14, 15, 16, 17, 20a, b, and c on the SF 1442.

If amendment(s) are issued acknowledge all amendments by completing blocks 19, 20a, 20b and 20c of the SF1442 or completing blocks 15a, b, and c of the amendment and submit with offer.

Price Proposal Schedule of Items
Submit fillable Schedule of Items attachment. DO NOT fill in the schedule in this solicitation document. Complete all items in fillable schedule and submit in Excel format.

Technical Proposal: Technical approach and past performance.
Technical Approach (not to exceed 5 pages):
Offerors shall submit a Technical Approach that demonstrates their ability to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements.

Technical Plans shall (1) demonstrate that offerors are capable of completing a quality project by referencing necessary methods, procedures, and techniques required to complete all work items; (2) include necessary equipment types that would be used to complete the project; (3) include necessary personnel (management and operators) that would be employed on the project; and (4) reference anticipated project timelines and demonstrate that all work items would be completed within the required Period of Performance. Lastly, the offeror must clearly and concisely demonstrate an understanding of special issues or problems likely to be encountered and describe how they will manage the project to minimize errors and omissions and ensure incorporation of Government comments, concerns, and feedback.

Past Performance:
Offerors shall submit Past Performance Reports that document at least three past performance references for contracts awarded within the past five years. Each reference shall cite the contract number, dollar amount, scope, location, and the name, phone number, and email address of the project point-of-contact.

Past Performance Reports shall demonstrate a history of working on projects similar in nature to those included in the project.

All documents detailed within “Required Quote Submission Documents” shall be submitted as separate Adobe PDF documents except for the price proposal which is to be submitted in Excel. It is the quoter’s responsibility to ensure delivery of all required documents by the date and time set for receipt of offers. Failure to submit required “completed” documents will result in the offer to be found Non-Responsive and not eligible for award.

FAR Provisions

52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
52.204-7	System for Award Management—Registration (Nov 2025)
52.223-4	Recovered Material Certification (May 2008)
52.225-2	Buy American Certificate (Oct 2022)
52.225-10	Notice of Buy American Requirement - Construction Materials (May 2014)
52.222-5	Construction Wage Requirements, Secondary Site of the Work (Nov 2025)

AGAR Provisions

452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

(1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
(2) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.
(End of Provision)

1A Bridge Conference Roof Repair
127EAX26Q0112

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.